

Mansoor Ali v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · WRIT - C No. - 42598 of 2019 · **Writ disposed; petitioner to appear before the Executive Engineer with objections; speaking final order directed; coercive action stayed; Section 127 appeal reserved if aggrieved; recovery citation auto-revives on non-appearance.**

HEADNOTE

A writ challenging a recovery citation of Rs.1,04,644, alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed by directing the consumer to appear before the Executive Engineer with objections and evidence. The Executive Engineer was to pass a speaking and reasoned final order within four weeks. Coercive action was stayed for six weeks or till disposal of the objection, whichever was earlier. If aggrieved by the final order, the consumer could appeal under Section 127 of the Electricity Act, 2003. Failure to appear and file the objection on the date fixed would automatically revive the citation.

FACTUAL SUMMARY

Mansoor Ali petitioned the Allahabad High Court to quash a recovery citation dated 2 November 2019 issued by the fourth respondent of Paschimanchal Vidyut Vitran Nigam Ltd. for Rs.1,04,644. His case was that the respondents were taking coercive action without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and Sri Pranjal Mehrotra for the Electricity Department were heard. The petition was listed before a Division Bench of Shashi Kant Gupta and Shamim Ahmed, JJ.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery-citation-hearing-then-section-127-appeal

HOLDING

A writ challenging a recovery citation issued without opportunity of hearing is disposed by directing the consumer to appear before the Executive Engineer with objections and evidence; the Executive Engineer shall pass a speaking and reasoned final order within four weeks; coercive action is stayed for six weeks or till disposal of the objection, whichever is earlier; if aggrieved by that final order the consumer may appeal under Section 127 of the Electricity Act, 2003; if the consumer fails to appear and file the objection on the date fixed, the recovery citation stands revived automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections to the recovery citation, the Court left the consumer, if aggrieved, to appeal under Section 127 of the Electricity Act, 2003 in accordance with law, without deciding the merits of the citation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF RS.1,04,644 WAS ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine the merits of the citation or identify any Supply Code clause; it directed a hearing and a speaking final order. ¶ 1